

Dharmi v. U.P.P.C.L. — recovery citation; writ dismissed for want of prosecution

High Court of Judicature at Allahabad · Division Bench · 11 April 2023 · WRIT - C No. 35010 of 2013 · **Writ dismissed for want of prosecution**

HEADNOTE

Writ challenging a 19.6.2013 recovery citation was connected with a pending similar petition and coercive steps were stayed by reference to Clause 8(1)(b)(iii) of the U.P. Electricity Supply Code, 2005 and alleged want of hearing on the objection. Years later the petition was dismissed for want of prosecution when none appeared even in revised call. The citation was not decided on merits.

FACTUAL SUMMARY

Dharmi petitioned the Allahabad High Court against U.P. Power Corporation Ltd. and others, challenging a recovery citation dated 19 June 2013. Counsel said several writs on the same grounds were pending and relied on Clause 8(1)(b)(iii) of the U.P. Electricity Supply Code, 2005, as quoted in the petition, alleging that an objection had been decided without opportunity of hearing. On 2 July 2013 the Division Bench connected the matter with Writ-C No. 53470 of 2012, stayed coercive steps, and called for a counter affidavit. After long adjournments the petition came up again in 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8(1)(b)(iii)

recovery citation; want of prosecution

HOLDING

On 2 July 2013 the Court connected this writ with Writ-C No. 53470 of 2012 in view of Clause 8(1)(b)(iii) of the U.P. Electricity Supply Code, 2005, as quoted in the petition, and directed that no coercive steps be taken on the citation dated 19 June 2013 till the next listing, following reasons given in an earlier order about lack of opportunity of hearing on the objection. On 11 April 2023, none having appeared for the petitioner even in revised call, the writ was dismissed for want of prosecution without deciding that challenge. ¶ 1,4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CITATION DATED 19.6.2013 WAS ISSUED IN BREACH OF CLAUSE 8(1)(B)(III) OR WITHOUT OPPORTUNITY OF HEARING ON THE OBJECTION

¶ 1,4